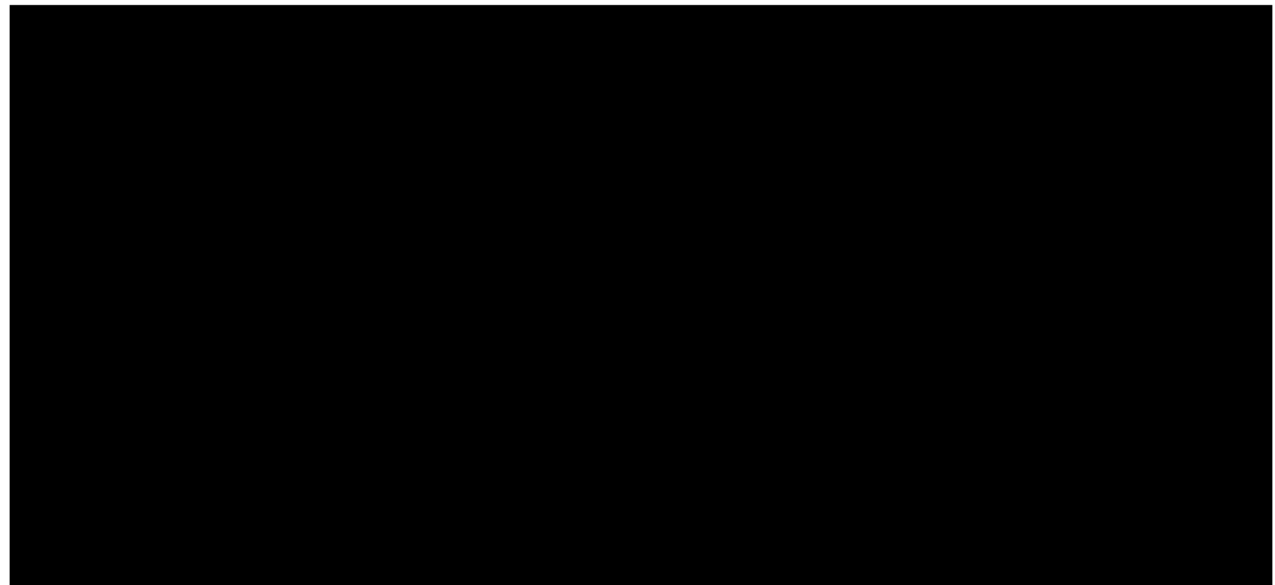


**JUSTIFICATION REVIEW DOCUMENT
FOR OTHER THAN FULL AND OPEN COMPETITION – FAR Part 6**

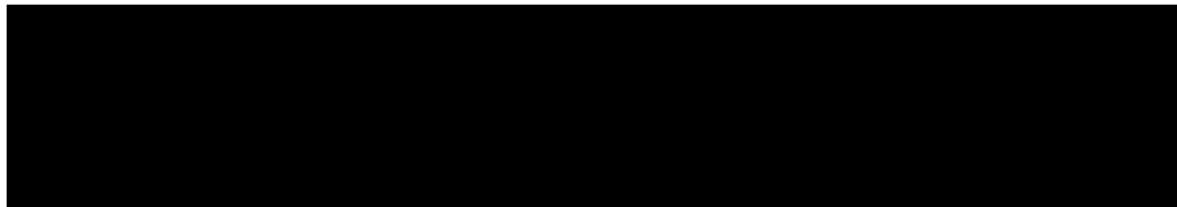
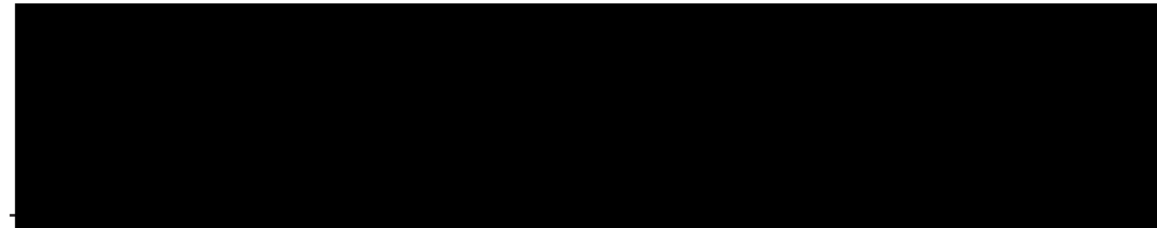
Program/Equipment: The Fort Benning Department of Public Works (DPW) Construction Multiple Award Task Order Contract (MATOC)/Indefinite Delivery Indefinite Quantity (IDIQ) contracts.

Authority: 10 U.S.C. 3204(a)(1) as implemented by FAR Part 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

Amount: \$30,000,000.00

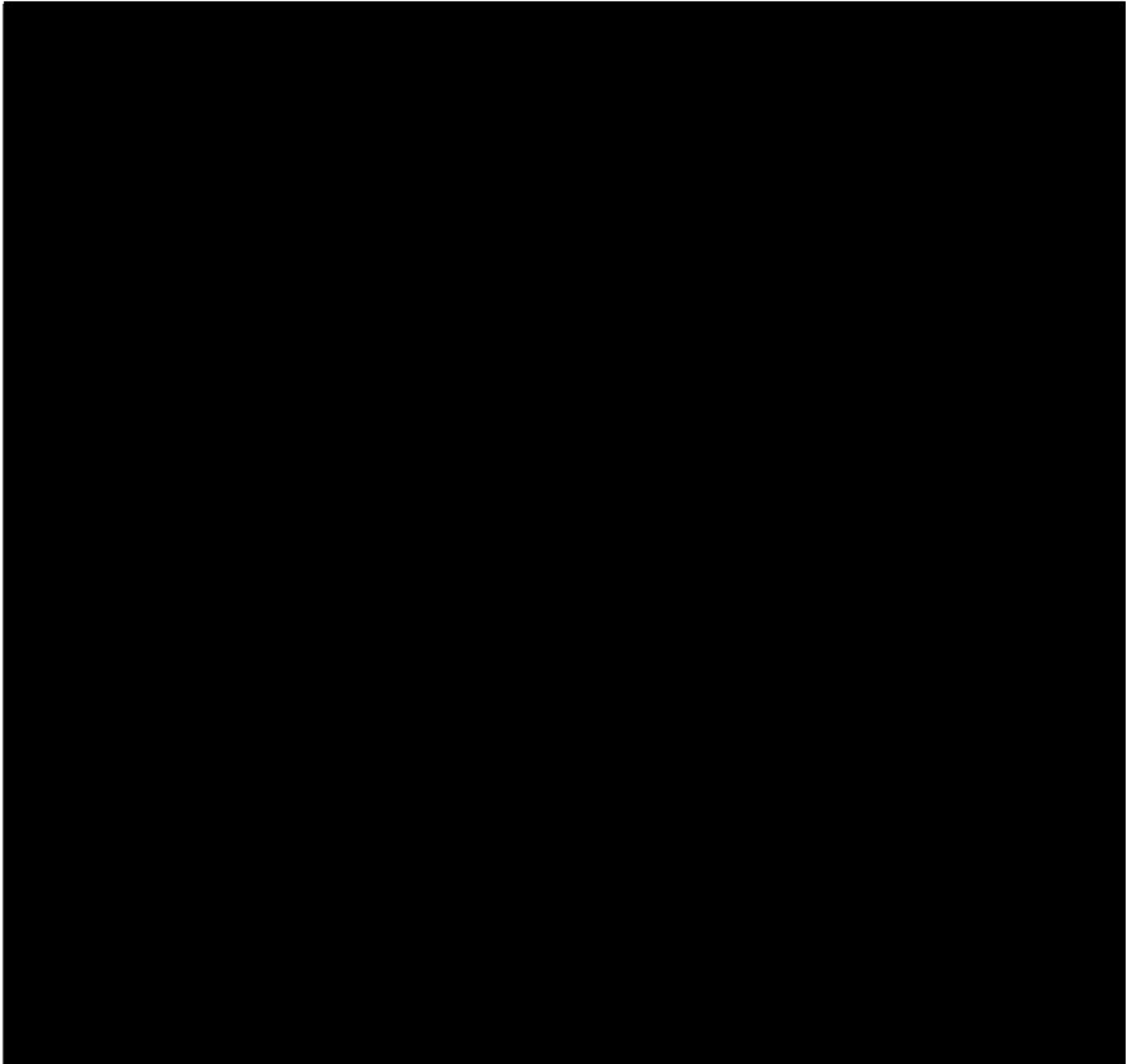


Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.



[Redacted]

Control No: MIC 2025-70



[Redacted]

**Justification and Approval
for Other than Full and Open Competition – FAR Part 6**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Benning, 6650 Meloy Drive, Building 6, Fort Benning, GA 31905.

2. Description of Action: The Fort Benning Directorate of Public Works (DPW) requests a modification to the contracts listed below to increase the ceiling capacity of the overarching construction MATOC and extend the ordering period for an additional 12 months. The appropriate fiscal year funding will be obligated by task order when orders are issued.

Contract No.	Vendor	Vendor Address
W911SF-20-D-0003	Carlisle Construction, LLC	187 Oak Avenue, Pine Mountain, GA 31822
W911SF-20-D-0004	Webb Group, Inc.	3200 2nd Ave., Columbus, GA 31904
W911SF-20-D-0006	Don Jones Construction, Inc.	4923 Amour Road, Suite 100, Columbus, GA 31904
W911SF-20-D-0007	DOT Construction, Inc.	4801 E Independence Blvd. Suite 506, Charlotte, NC 28212

3. Description of Supplies/Services: The Construction MATOC is used to execute a broad range of maintenance, repair, and minor construction projects at Fort Benning, GA, Camp Frank Merrill, GA, Camp Rudder, FL, and Destin Rest Camp, FL. Throughout the MATOC's five (5) year ordering period and proposed 12-month extension, the Government identifies tasks required to complete a specific project. The Contracting Officer (KO) issues a Request for Task Order Proposal (RTOP) to the awarded MATOC contractor(s) to compete for specific projects. Project work may include a variety of trades such as carpentry, roofing, painting, electrical, heating, ventilation, and air conditioning (HVAC), plumbing, masonry, demolition, storm damage, earthwork, welding and other general construction/renovation work. Projects may include design for Design-Build execution.

Original Ordering Period:

08 MAY 2020 to 07 MAY 2025

Ceiling Value: \$125,000,000.00

12-Month Extension Period:

08 MAY 2025 to 07 MAY 2026

Added Ceiling Capacity: \$30,000,000.00

Adjusted Ceiling Value: \$155,000,000.00

4. Authority Cited: 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Reason for Authority Cited: As described at FAR 6.302-1(a)(2), when the supplies or services required by the agency are available only from one responsible source, or for DoD, NASA and the Coast Guard, from only one or a limited number of responsible sources, and no other types of supplies or services will satisfy agency requirements, full and open competition need not be provided for. The Fort Benning DPW has a requirement to execute the projects on its Annual Work Plan (AWP) in an efficient, timely and cost-effective manner, which is fulfilled by the current Construction MATOC holders.

a. Background: On May 8, 2020, the MICC-Fort Benning awarded the original Construction MATOC contract with a ceiling value of \$75 million. The intent of the Fort Benning MATOC was to support Fort Benning DPW construction/renovation requirements for a five (5) year ordering period. The MATOC continues to serve as a critical acquisition vehicle for awarding essential construction/renovation projects in an expedited manner. It remains the most viable/timely option to aid in preventing additional degradation of facilities at Fort Benning in need of various repairs and renovations due to age, use and weather-related damages. In 2023, the MATOC ceiling value was approved for a \$50 million increase due to the unforeseen increased costs resulting from the COVID Pandemic, as well as an increase to the amount of annual SRM funding provided to DPW that is used for maintaining the installation's facilities and infrastructure. Additionally, freight and logistics costs have increased dramatically due to tightened capacities and increased fuel costs. In turn, Fort Benning DPW has had to fund several REAs (Requests for Equitable Adjustments) for allowable costs incurred by the contractor.

Fiscal Year	Projected Value of Orders Issued	Value of Orders Issued	Ceiling Value \$125,000,000
FY20 (5 months)		\$8,600,000	\$116,400,000
FY21		\$21,900,000	\$94,500,000
FY22		\$23,500,000	\$71,000,000
FY23		\$25,500,000	\$45,500,000
FY24		\$27,000,000	\$18,500,000
FY25	\$28,500,000		<-\$10,000,000>
FY26 (7 months)	\$20,000,000		<-\$30,000,000>

A significant delay was incurred before obtaining consensus to exclude design-build capability from the statement of work. This aspect, together with delays in establishing the personnel who would participate in the source selection evaluation contributed to approximately a 15-month delay. With the ordering period associated with the current MATOC ending on 7 May, an extension to that ordering period is needed to continue providing Fort Benning with an efficient means to address their minor facility

construction needs until a follow-on Construction MATOC can be awarded by the MICC-Installation Readiness Center.

Upcoming milestones and dates for the follow-on Construction MATOC procurement are identified in the following table.

Milestone Activity	Date
Issue Solicitation:	27 JUN 2025
Begin Proposal Evaluation	14 AUG 2025
Price Negotiation Memorandum Approved	19 FEB 2026
Award	14 MAY 2026

Given the projected award date in May of 2026 for the follow-on Construction MATOC, a lapse in service of approximately 12 months will occur unless temporary measures are established to provide the DPW with an efficient minor construction capability.

Given the current estimated award date for the Follow-on MATOC contract, the best course of action to avoid DPW construction delays would be to execute a 12-month extension to the existing MATOC. The current MATOC provides the Fort Benning DPW with a vehicle to award shovel-ready projects and any emerging projects that exceed the threshold and/or scope of the Paving Requirements and Job Order Contracts. Relying on the alternatives below, would result in the inability of DPW to award and/or address emerging projects in a timely manner and perhaps inability to award this FY.

The benefits of competition will not offset the expense and efforts of multiple transitions within this timeframe. The upcoming competition will provide for a transition, but it is unreasonable to incur the expense and efforts for two such transitions within this short period of time. It is not feasible, nor is it in the best interest of the Government, for other Contractors at this point to develop/perform the current tasks and services. Introducing a new MATOC pool at this time would require the new contractors to go through the process to obtain access to the installation for a shorter-term contract. Additionally, the existing MATOC pool has already coordinated with local subcontractors and has the experience to continue the required work with no mobilization time. The prospect of a new contractor for this period of time would also raise the potential of two transitions within a short period of time.

b. Alternatives.

1) Wait for the Follow-on MATOC Contract to be awarded in May 2026, which is not viable due to the length of time Fort Benning DPW would have without this critical construction acquisition vehicle in place.

2) Award stand-alone contracts for construction, which is not feasible due to the time needed to award contracts. The contracts anticipated to be awarded under the MATOC are generally under \$1 million. Awarding individual contracts is not time

efficient or cost effective given the scope of the anticipated contracts, potential for emergent projects that need fast response time, and the sheer number of small projects. Any projects that are over \$5 million are not included in this sole source and are awarded via separate vehicles. Utilizing stand-alone contracts could impede Fort Benning from completing current construction projects or effectively responding to the need of new and emerging projects.

3) There are no other MATOC contracting vehicles available for these needs.

c. Impact if justification is not approved. The Fort Benning DPW's ability to award shovel-ready projects in the 4th quarter of FY 25 will be significantly hindered without the MATOC vehicle. IMCOM faithfully distributes the remainder of Sustainment, Restoration and Modernization funding in September. In anticipation of this, the DPW and MICC-Fort Benning have preliminarily prepared documentation to facilitate expedient use of the MATOC should additional funding be distributed to Fort Benning late in the 4th fiscal quarter. The FY25 Real Property Planning Board list of projects has a number of emerging projects that are likely to receive funds later this fiscal year to include roofing repairs and emergency stairwell repair that currently doesn't meet code.

6. Efforts to Obtain Competition: In accordance with FAR 5.203(a), this action will be synopsized.

a. Effective competition. EJS, one of the five MATOC holders, is not accepting new work and their IDIQ has been terminated. Effective competition will continue to occur among the four remaining MATOC contractors at the task order level through issuance of RTOPs. Each task order will be awarded to the contractor with the lowest priced, technically acceptable proposal. The current MATOC contracts were awarded following an extensive competitive source selection.

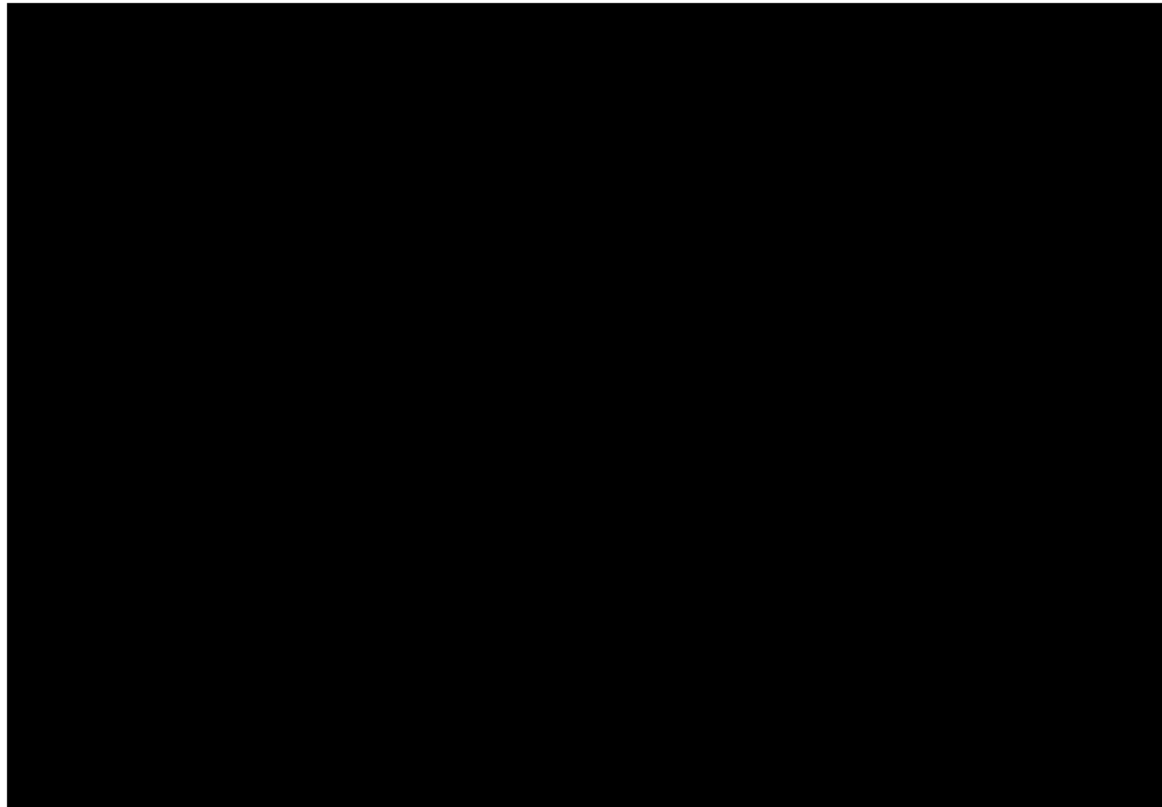
b. Subcontracting competition. There is no subcontracting plan for this action. Each general contractor oversees the selection of subcontractors required on each particular task order.

7. Actions to Increase Competition: As indicated in the description of action, the current robust level of task order competition amongst the MATOC contract holders will continue for the duration of the FY20 MATOC to include the 12-month extension period. A new competitive procurement for a follow-on to the current Construction MATOC will be handled by the MICC-Installation Readiness Center.

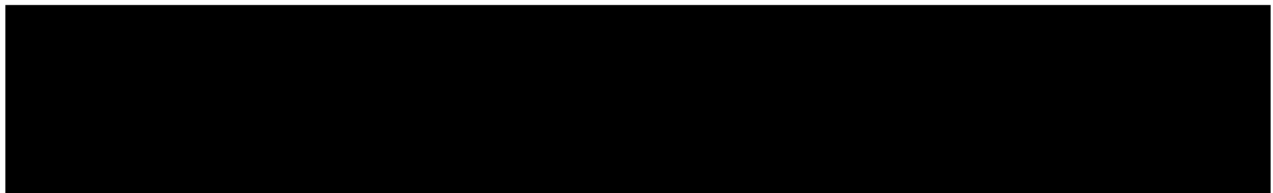
8. Market Research: In accordance with Defense Federal Acquisition Regulation Supplement, DFARS 206.302-1(d), and DFARS Procedures, Guidance, and Information (PGI) 206.302-1(d), a Sources Sought Notice was posted to Sam.gov on 20 March 2025 for 7 Days and [REDACTED] responded. The results support that there is enough small business participation to provide adequate competition as a total small business set-aside. The existing MATOC is a small business set-aside with a pool of four small

business contractors. The existing MATOC pool of vendors provides several advantages to the Government that the interested sources could meet in the future but cannot meet immediately. There was no evidence that a solicitation would result in an award that was more advantageous to the Government than a 12-month extension of the current MATOC contract.

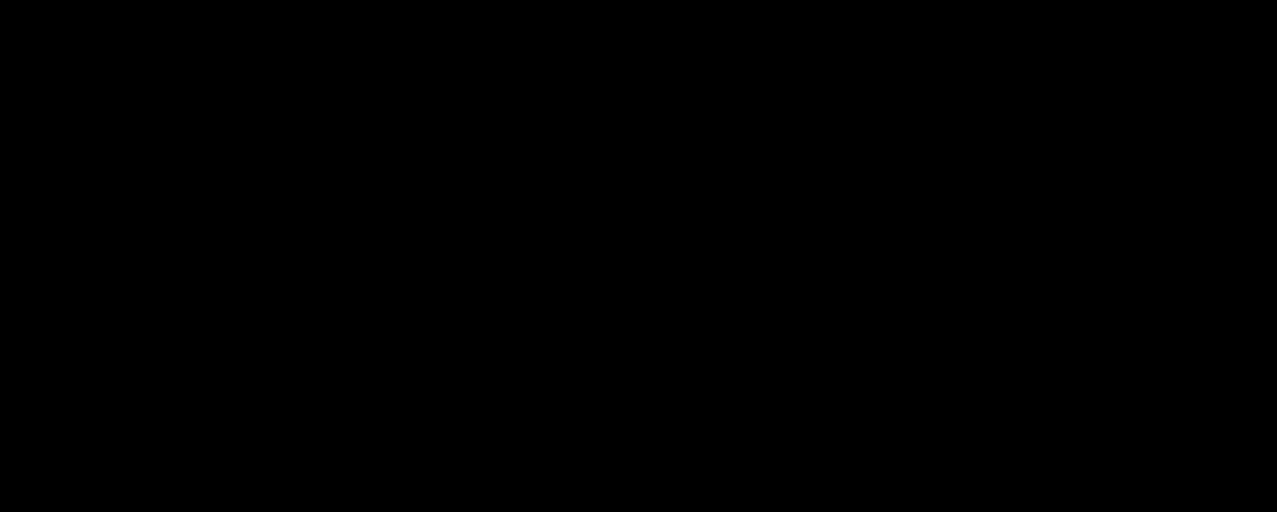
9. Interested Sources: There were a total of [REDACTED] from interested sources for the Sources Sought that was posted on Sam.gov. See table below.



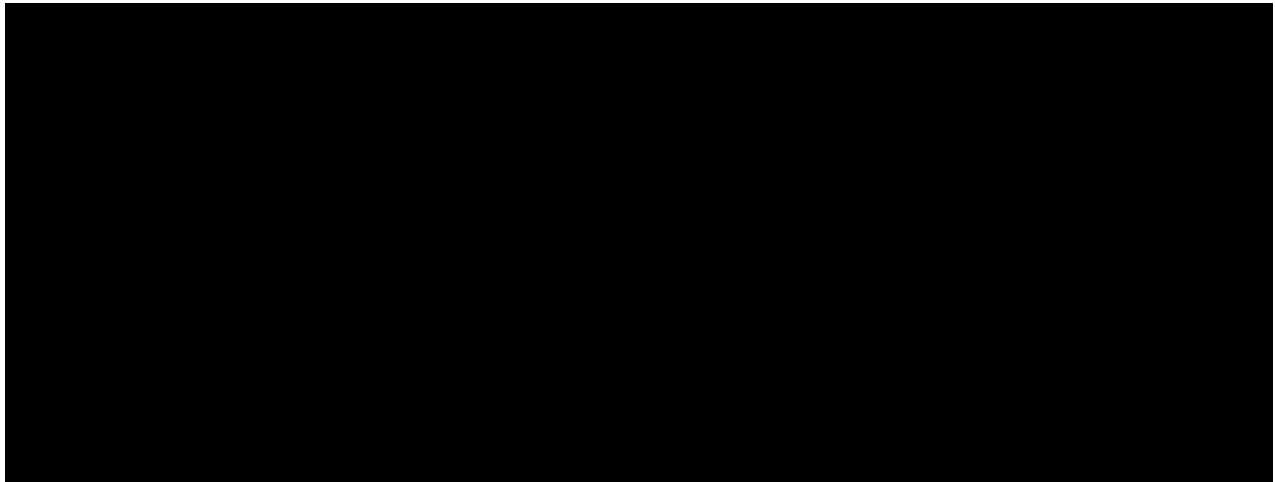
10. Other Facts:



11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.



13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using the IGCE. As a part of this basis, certified cost or pricing data will be required when applicable.



Approval

Based on the foregoing justification, I hereby approve an increase to the ceiling capacity of the Fort Benning Construction MATOC on an other-than-full-and-open competition basis pursuant to the authority of Title 10 United States Code Section 3204(a)(1), as implemented by Federal Acquisition Regulation 6.302-1 - Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. The estimated value of the increase in ceiling capacity is \$30 million with funding to be obligated by task orders issued during the 12-month ordering period from 8 May 2025 through approximately 7 May 2026. The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

